



CHAPTER cxxxvi.

An Act for incorporating and conferring powers upon a joint committee of the Metropolitan and Great Central Railway Companies for leasing certain railways of the Metropolitan Company for confirming an agreement between the two Companies in relation thereto and for other purposes. A.D. 1905.

[4th August 1905.]

WHEREAS the undertaking of the Metropolitan Railway Company (in this Act called "the Metropolitan Company") comprises with other railways and works a continuous railway of upwards of fifty miles in length commencing at Baker Street in the parish of St. Marylebone in the county of London and extending through Willesden Green Harrow Rickmansworth Aylesbury and Quainton Road to Verney Junction in the county of Buckingham with a branch railway nearly four miles in length to Chesham in the same county :

And whereas by the Manchester Sheffield and Lincolnshire Railway (Extension to London &c.) Act 1893 (in this Act called "the Act of 1893") the Great Central Railway Company (then the Manchester Sheffield and Lincolnshire Railway Company and in this Act called "the Great Central Company") were authorised to construct an extension of their system southward from Annesley in the county of Nottingham to Quainton Road aforesaid with a junction there (herein-after referred to as "Quainton Road junction") with the railway of the Metropolitan Company and also to construct a railway commencing by a junction with the Metropolitan Railway in the parish of St. John Hampstead in the county of Middlesex (herein-after referred to as "Canfield Place junction") and terminating in the parish of

A.D. 1905. — St. Marylebone in the county of London and by the same Act an agreement dated the 18th day of December 1890 (in this Act called “the agreement of 1890”) and made between the Metropolitan Company and the Great Central Company (hereinafter called “the two Companies”) scheduled thereto was confirmed under and by virtue whereof the Great Central Company were empowered at the time in the manner and subject to the terms therein mentioned to run over and use in perpetuity the railway of the Metropolitan Company between the Quainton Road junction and Baker Street aforesaid:

And whereas by the Manchester Sheffield and Lincolnshire Railway Act 1895 (in this Act called “the Act of 1895”) the Metropolitan Company were authorised to construct a railway (therein and in this Act called “Railway No. 8”) commencing by a junction with the railway of the Metropolitan Company at Preston Road and terminating at Canfield Place junction being a widening of the railway of the Metropolitan Company between those points and by the same Act an agreement dated the 20th day of June 1895 and made between the two Companies was confirmed whereby it was provided that the Great Central Company should have the exclusive and separate use of Railway No. 8 for the purpose of exercising the running powers conferred upon them by the agreement of 1890 as if Railway No. 8 had at the date of the last-mentioned agreement formed part of the undertaking of the Metropolitan Company and that thereupon the powers of the Great Central Company to run over the portion of the then existing railway of the Metropolitan Company between the commencement and termination of Railway No. 8 should cease so far as such powers applied to the running of the trains of the Great Central Company to and from their termini in or near the Marylebone Road:

And whereas by the Metropolitan Railway Act 1896 (in this Act called “the Metropolitan Act of 1896”) the Metropolitan Company were authorised to construct a railway (therein and in this Act called “Widening No. 2”) being a widening of their railway in continuation of Railway No. 8 between the junction at Preston Road aforesaid and a junction with the railway of the Metropolitan Company near their Harrow Station known as “Harrow South junction” and the Great Central Company were authorised to have and exercise the same rights powers and privileges over and in respect of Widening No. 2 as were

conferred on that Company by the agreement of 1890 subject in all respects to the terms conditions and restrictions therein and in the Act of 1893 contained :

And whereas the Great Central Company's Extension to London Railway authorised by the Act of 1893 and the Railway No. 8 and the Widening No. 2 forming with the Metropolitan Railway a continuous line of railway communication from the Great Central Company's northern system of railways to Marylebone Station London was completed and opened for traffic in the month of March 1899 :

And whereas by the Manchester Sheffield and Lincolnshire Railway Act 1896 the Great Western Railway (Additional Powers) Act 1897 the Great Central Railway Act 1898 and the Great Western and Great Central Railway Companies Act 1899 (in this Act called "the joint Act of 1899") certain railways and works were authorised and are now in course of construction which on completion will afford for the through traffic of the Great Central Company an alternative route between a point on their railway north of Quainton Road junction and a junction with Railway No. 8 at Neasden and enable the Great Central Company to discontinue the exercise of the running powers conferred on them by the agreements of 1890 and 1895 and the Metropolitan Act of 1896 over such portion of the railway of the Metropolitan Company as is situate between Quainton Road junction and the said junction at Neasden and to divert their through traffic from the railway of the Metropolitan Company except from the portion of Railway No. 8 between Canfield Place junction and Neasden :

And whereas by section 15 of the joint Act of 1899 it was provided that before the railways and works authorised by that Act were opened for any description of traffic the Great Western Railway Company (in this Act called "the Great Western Company") and the Great Central Company should pay to the Metropolitan Company a sum as and for compensation in regard to the outlay by the Metropolitan Company between Quainton Road junction and Canfield Place incurred for the purpose of providing for the requirements of the Great Central Company's traffic over the Metropolitan Company's line and that such sum should failing agreement be settled by arbitration :

And whereas the settlement of the amount of compensation so payable to the Metropolitan Company was failing agreement

A.D. 1905. referred to the Right Honourable Lord Robertson as single arbitrator and he entered upon the arbitration:

And whereas before the completion of the said arbitration a settlement was arrived at between the two Companies with the privity of the Great Western Company upon the terms of the heads of agreement contained in the schedule to this Act:

And whereas it is expedient that the said heads of agreement contained in the schedule to this Act or the formal agreement to be entered into in pursuance thereof should be confirmed as in this Act provided:

And whereas it is expedient that in pursuance of the said heads of agreement a joint committee of the two Companies should be constituted as by this Act provided (in this Act called "the joint committee") and that the railway of the Metropolitan Company between Harrow South Junction and Verney Junction as described in the said heads of agreement should be leased to the joint committee:

And whereas it is expedient that in further pursuance of the said heads of agreement the Railway No. 8 and Widening No. 2 as therein described should be leased to the Great Central Company:

And whereas it is expedient that the powers contained in this Act in relation to the tramway of the Oxford and Aylesbury Tramroad Company known as the Wotton Tramway or the Brill Tramway should be conferred upon the Metropolitan Company or the two Companies jointly or the joint committee:

And whereas it is expedient that the Metropolitan Company and the Great Central Company respectively should be empowered to apply their funds to the purposes of this Act:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title. **1.** This Act may be cited as the Metropolitan and Great Central Railway Companies Act 1905.

2. The following enactments (so far as they are applicable for the purposes of and are not inconsistent with or expressly varied by this Act) are hereby incorporated with and shall be part of this Act (that is to say):—

A.D. 1905.
 —
 Incorpora-
 tion of
 general
 Acts.

The Lands Clauses Acts;

Sections 112 and 113 of the Railways Clauses Consolidation Act 1845 with respect to leasing the railway; and

Sections 95 to 100 with respect to proceedings and liabilities of directors sections 109 to 114 with respect to the accountability of officers sections 124 to 127 with respect to the making of byelaws sections 135 and 139 with respect to the giving of notices and section 140 (Proof of debts in bankruptcy) of the Companies Clauses Consolidation Act 1845:

And in the application of the said sections of the last-mentioned Act to the joint committee the members of the joint committee shall be deemed to be directors of a company.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

Interpreta-
 tion.

The expression "the Metropolitan Company" means the Metropolitan Railway Company;

The expression "the Great Central Company" means the Great Central Railway Company;

The expression "the two Companies" means the Metropolitan Company and the Great Central Company;

The expression "the joint committee" means the joint committee constituted by this Act;

The expression "the joint undertaking" means the undertaking by this Act authorised to be leased to the joint committee;

The expression "the Great Western Company" means the Great Western Railway Company.

4. For the purposes of this Act there shall be a joint committee to be constituted as provided by this Act representing the Metropolitan Company and the Great Central Company respectively and a standing arbitrator to be appointed as hereinafter provided.

Joint com-
 mittee and
 standing
 arbitrator.

A.D. 1905.

Name and
incorporation
of joint com-
mittee.

5. The joint committee shall be called "The Metropolitan and Great Central Joint Committee" and by that name the members for the time being of the joint committee shall be one body corporate and shall be by this Act incorporated accordingly with perpetual succession and a common seal and with power to hold and dispose of lands without any licence in mortmain.

Constitution
appointment
and proceed-
ings of joint
committee.

6.—(1) The joint committee shall consist of three of the directors of the Metropolitan Company and three of the directors of the Great Central Company to be nominated in writing under the seal of the respective Companies the first nomination to be made within three months after the passing of this Act and the chairman of the joint committee at each meeting shall be a director of one of the two Companies alternately At each meeting the member or members present representing either company shall have only one vote collectively and the chairman shall have no casting vote and in case of difference arising between the representative directors of the respective Companies the same shall be settled from time to time by the boards of the two Companies or that failing by arbitration as in this section provided.

(2) Each of the two Companies may from time to time at their pleasure by writing under their respective seals remove all or any of the members of the joint committee nominated by them respectively as aforesaid and may in like manner fill up any vacancies occurring in the joint committee by removal death disqualification or resignation and any informality in the nomination of a member of the joint committee shall not invalidate any act done by the joint committee previously to the discovery of such informality and the omission of either Company to supply any vacancy in the joint committee shall not invalidate any act of the joint committee.

(3) The joint committee shall hold its meetings at such place as it may from time to time determine and two shall be a quorum thereof provided that each Company is represented at such meeting.

(4) As early as may be practicable in each half year complete statements of accounts made up to the previous 30th June and 31st December respectively verified and signed by the accountants of the two Companies shall be submitted to the joint committee and any balances shown thereon shall be paid by or to one company or the other to or by the joint committee as the case may be within twenty-eight days thereafter.

(5) All moneys required by the joint committee for expenditure on the joint undertaking on capital account shall be provided in equal shares by the two Companies. Provided always that if any difference shall arise between the two Companies as to the necessity for any such capital expenditure such difference shall unless otherwise agreed be referred to and determined by the standing arbitrator who shall have power to determine by whom the expense of providing such capital shall be defrayed and if by both Companies in what proportions.

(6) If any dispute or difference shall arise in the joint committee which under the provisions of this section is directed to be settled by arbitration the same shall be settled by the arbitration of a standing arbitrator to be appointed by the two Companies within one month after the appointment of the joint committee and thereafter annually or from time to time as a vacancy may occur by death or resignation or incapacity and if at any time the two Companies shall fail to agree in appointing a standing arbitrator within the time hereby prescribed for such appointment or in case of a casual vacancy within one month after such vacancy shall have occurred the standing arbitrator shall be a person appointed in that behalf for the remainder of the then current year by the Board of Trade on the application of either of the two Companies.

7. The heads of agreement dated 20th October 1904 made between the Metropolitan Company of the one part and the Great Central Company of the other part of which a copy is set forth in the schedule to this Act are hereby confirmed and made binding upon the two Companies pending the completion of a formal agreement to be entered into by the two Companies in pursuance of the said heads of agreement which said formal agreement shall in case of difference be settled for the two Companies by the Right Honourable Lord Robertson or him failing by a single arbitrator to be appointed by the two Companies or if they should fail to agree then to be appointed upon the application of either of the two Companies by the Board of Trade and upon completion such formal agreement shall be substituted for the said heads of agreement and be in like manner binding upon the two Companies.

Confirming
agreement
between two
Companies.

8. The Metropolitan Company may grant and the joint committee may accept a lease of the portion of the railway undertaking of the Metropolitan Company between Harrow

Authority
for lease to
joint com-
mittee.

A.D. 1905. — South Junction and Verney Junction with the Chesham Branch as described in the said heads of agreement (including the interest of the Metropolitan Company in the Aylesbury Joint Station of the Great Western Company and the Metropolitan Company) upon the terms and conditions stated in the said heads of agreement:

Provided always that nothing in this section contained shall confer upon the Metropolitan Company (except as to the granting of the said lease) or upon the joint committee as claiming through them any greater rights or powers with regard to the said joint station than the Metropolitan Company are entitled to under the agreement dated the 6th day of December 1866 and made between the Wycombe Railway Company and the Aylesbury and Buckingham Railway Company and that the Great Western Company shall be entitled to require payment from the joint committee of such sums in respect of the user of the said joint station as they would have been entitled to receive from the Metropolitan Company or the Great Central Company if this Act had not been passed. Provided also that save as aforesaid nothing in this Act contained shall alter prejudice or affect the said agreement of the 6th day of December 1866.

Authority
for lease to
Great Cen-
tral Com-
pany.

9. The Metropolitan Company may grant and the Great Central Company may accept a lease of Railway No. 8 and Widening No. 2 as described in the heads of agreement scheduled to this Act upon the terms and conditions stated in the said heads of agreement.

As to Brill
Tramway.

10. The two Companies jointly or the joint committee may acquire by transfer lease or otherwise the rights and interest of the Metropolitan Company in or in relation to the tramway of the Oxford and Aylesbury Tramroad Company called or known as "the Wotton Tramway" or "the Brill Tramway" wholly situated in the county of Buckingham and commencing at the Quainton Road Station of the Metropolitan Company and terminating at Brill including the right to acquire the same together with all works and conveniences and all powers rights privileges and authorities of the owners of such tramway and works in connexion therewith upon such terms and conditions and for such consideration as have been or may be agreed with such owners.

11. Each of the two Companies may appropriate and apply to the purposes of this Act to which capital is properly applicable any moneys which they now have or which they are already authorised to raise or which under any Act to be passed during the present session of Parliament they may be authorised to raise and which may not be required for the purposes to which they are made specially applicable.

A.D. 1905.

Power to
apply cor-
porate funds
to purposes
of Act.

12. Nothing in this Act contained and no act or thing done under the authority of this Act shall alter prejudice or affect the rights of the Postmaster-General in respect of the portion of railway and the railways authorised to be leased under this Act or in respect of the tramway of the Oxford and Aylesbury Tramroad Company known as the Wotton Tramway or the Brill Tramway or any existing agreement or arrangement made between the Postmaster-General and the Aylesbury and Buckingham Railway Company or the Metropolitan Company or the Oxford and Aylesbury Tramroad Company.

Saving for
Postmaster-
General.

13. Nothing in this Act contained or anything arising thereunder shall alter prejudice or affect the agreement made and entered into on the 26th day of March 1896 between the Great Central Company (then the Manchester Sheffield and Lincolnshire Railway Company) and the Great Western Company or entitle the Great Central Company to call upon the Great Western Company under paragraph 18 of that agreement to revise the same.

Saving
agreement
between
Manchester
Sheffield and
Lincolnshire
and Great
Western
Companies.

14. Nothing in this Act contained shall exempt the two Companies or the joint committee or their respective railways from the provisions of any general Act relating to railways or to the better and more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares tolls or charges or of the rates for small parcels authorised to be taken by the Metropolitan Company or the Great Central Company or the joint committee.

Railways
not exempt
from pro-
visions of
present or
future gene-
ral Railway
Act.

15. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the two Companies equally.

Expenses of
Act.

A.D. 1905.

The SCHEDULE referred to in the foregoing Act.

HEADS OF AGREEMENT.

Lease for 999 years to be granted by the Metropolitan Company to the Great Central Company of the railway from Canfield Place to Harrow South Junction at a yearly rental of £20,000.

The surplus lands purchased for Railway No. 8 which lie between West End Lane and the River Brent to be included in the lease and a plan to be prepared showing the line and boundaries.

Any properties to which the Surplus Lands Committee are now beneficially entitled not to be leased.

Metropolitan Company to have running powers between Harrow South Junction and a junction to be provided by the Great Central Company at a point north of the Great Central Company's proposed new junction with their Northolt line for passenger goods and mineral trains at mileage rates with an allowance of $33\frac{1}{3}$ per cent. for running expenses with the usual facilities for dealing with empty stock.

The present station at Willesden Green to be enlarged at joint expense of the two Companies and exchange platforms constructed Any land now belonging to the Metropolitan Company which may be required for this purpose to be used without charge to the two Companies.

Great Central Company not to convey traffic locally to or from any point between Marylebone and Harrow South Junction.

As to the question of land at Broadhurst Gardens the Metropolitan Company to have conveyed to them the surplus lands on the north side of the present running lines and give the Great Central Company the amount paid by them for such land with interest on the purchase money at 4 per cent. The Great Central Company to concur so far as they may have any title to the site of the running lines so as to enable the lease to be granted but to remain the owners of all the other land purchased by them.

The Metropolitan Company to have a through crossing at Weimbley Park providing for access to their yard and property on the south-west side of the line as at present.

Metropolitan Company to lease their railway from Harrow South Junction to Verney Junction with the Chesham Branch including stations works sidings wharfs approaches lands and conveniences except properties to which the Surplus Lands Committee have a beneficial interest to a Metropolitan and Great Central Joint Committee for 999 years at a yearly rental of £44,000 and the joint committee shall assume the interest and obligations of the Metropolitan in respect of the Brill Tramway but if and when the same shall become vested in the two Companies that portion of it lying to the west of the Princes Risborough and Grendon Underwood line of the Great Central Company shall if the Great Central so request

be transferred to such parties as they may indicate at a price fairly proportionate to the cost of the whole. A.D. 1905.

The Great Central Company to put upon the joint line a minimum amount of through traffic of £45,500 a year gross Any deficiency during the first two years in any one of such years to be made up in the next following year.

The joint lines to be managed by the Metropolitan Company's officers for the first five years under the direction of the joint committee and subsequently in periods of five years alternately by each Company unless otherwise agreed.

Each Company to be allowed $33\frac{1}{3}$ per cent. of the mileage receipts in their own trains for running expenses.

The joint committee to pay all maintenance and other charges in connexion with the joint lines Accounts to be made up half-yearly—June and December Any deficiency arising on the working of the joint lines to be borne in equal proportions by the two Companies and any profit up to and including £5,500 per annum to be received by the Metropolitan Company and the balance of profit thereafter to be divided equally between the two Companies.

If in any year the Metropolitan Company's mileage proportion of receipts between Baker Street and Harrow South Junction accruing from passenger train traffic to and from Baker Street and the stations on the Inner Circle Railway with the joint line stations north of and inclusive of Harrow fall below the ascertained receipts for the year 1904 (after allowing for any reduction of rates and fares if the future receipts are thereby reduced below the 1904 figures) by reason of the diversion of any of such traffic to or from Marylebone the Great Central Company to pay the Metropolitan Company $66\frac{2}{3}$ per cent. of the mileage proportion accruing to the railway between Marylebone and Harrow South Junction in respect of such diverted traffic up to the amount of such ascertained receipts.

When the traffic referred to in the last paragraph exceeds the 1904 figures the balance after deducting running expenses at $33\frac{1}{3}$ per cent. to each Company to be divided half-yearly for the first five years in the proportion $\frac{2}{5}$ ths to Metropolitan and $\frac{3}{5}$ ths to Great Central and thereafter in equal proportions.

The Great Central Company's present carryings (year 1904) to and from Marylebone to be excluded from the operation of the two preceding paragraphs.

The fares and rates from Marylebone to Harrow and stations north thereof on the joint line not to be less than those charged from Baker Street (Metropolitan).

The siding to the electrical sub-station and electrical sub-station at Harrow not to be included in the lease nor the cables or electrical equipment from Harrow South Junction to the Uxbridge Line Junction.

Further capital requirements of the joint line to be dealt with by the joint committee and contributed equally.

[Ch. cxxxvi.] *Metropolitan and Great Central
Railway Companies Act, 1905.*

[5 EDW. 7.]

A.D. 1905.

— A formal agreement to be entered into and submitted for confirmation by Parliament and this settlement to be in satisfaction of the Metropolitan Company's claim under section 15 of the Great Western and Great Central Companies' Act 1899 Both Companies to use their best endeavours to secure the passage of the Bill free from objectional restrictions and clauses.

The arbitration before Lord Robertson to be adjourned pending confirmation.

The out-of-pocket costs of the Metropolitan Company in connexion with the arbitration proceedings to be paid by the Great Central Company.

This agreement to come into operation upon the opening of the Great Central and Great Western Joint Lines for passenger traffic through (viâ Northolt) to Marylebone The Metropolitan Company not to object to the use of the said joint lines for passenger traffic of the Great Western Company or goods and mineral traffic of any description in the meantime.

20th October 1904.

Great Central Railway Company

(Signed) ALEX. HENDERSON
Chairman.

For Metropolitan Railway Company

(Signed) CHARLES McLAREN
Chairman.

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